

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

ELBERT PARR TUTTLE COURT OF APPEALS BUILDING
56 Forsyth Street, N.W.
Atlanta, Georgia 30303

David J. Smith
Clerk of Court

For rules and forms visit
www.ca11.uscourts.gov

October 17, 2023

John Michael Connolly
Consovoy McCarthy, PLLC
1600 WILSON BLVD STE 700
ARLINGTON, VA 22209

Noel John Francisco
Jones Day
51 LOUISIANA AVE NW
WASHINGTON, DC 20001

Joshua T. Hoyt
Jones Day
51 LOUISIANA AVE NW
WASHINGTON, DC 20001

Brinton Lucas
Jones Day
51 LOUISIANA AVE NW
WASHINGTON, DC 20001

David Phillips
Jones Day
4655 EXECUTIVE DR STE 1500
SAN DIEGO, CA 92121

Brian C. Rabbitt
U.S. Department of Justice
Criminal Division, Appellate Section
950 PENNSYLVANIA AVE NW
WASHINGTON, DC 20530

Yaakov M. Roth
Jones Day
51 LOUISIANA AVE NW
WASHINGTON, DC 20001

Appeal Number: 23-13396-B

Case Style: American Securities Association, et al v. U.S. Securities and Exchange Commission

Agency Docket Number: 34-98290

Petition for Review/Application for Enforcement

Pursuant FRAP 15(c), you are hereby served with the following document that has been filed in this court:

Petition for Review

All counsel must file documents electronically using the Electronic Case Files ("ECF") system, unless exempted for good cause. Although not required, non-incarcerated pro se parties are permitted to use the ECF system by registering for an account at www.pacer.gov. Information and training materials related to electronic filing are available on the Court's website.

Record

Pursuant to FRAP 17(a), an agency must file the record within 40 days after being served with the petition for review. See FRAP 16 and 17.

Certificate of Interested Persons and Corporate Disclosure Statement ("CIP")

Every motion, petition, brief, answer, response, and reply must contain a CIP. See FRAP 26.1; 11th Cir. R. 26.1-1. In addition:

- Appellants/Petitioners must file a CIP within 14 days after this letter's date.
- Appellees/Respondents/Intervenors/Other Parties must file a CIP within 28 days after this letter's date, regardless of whether Appellants/Petitioners have filed a CIP.
- Only parties represented by counsel must complete the web-based CIP. Counsel must complete the web-based CIP, through the [Web-Based CIP](#) link on the Court's website, on the same day the CIP is first filed.

The failure to comply with 11th Cir. Rules 26.1-1 through 26.1-4 may result in dismissal of the case or appeal under 11th Cir. R. 42-1(b), no action taken on deficient documents, or other sanctions on counsel, the party, or both. See 11th Cir. R. 26.1-5(c).

Mediation

If a Civil Appeal Statement is required to be filed and the appeal is fully counseled on all sides, your appeal will be reviewed and considered for mediation. Mediation services are at no cost to the parties. If no Civil Appeal Statement is required or you or any party to the appeal is self-represented or *pro se* then the appeal is not eligible for mediation. See 11th Cir. R. 33-1.

Attorney Admissions

Attorneys who wish to participate in this appeal must be properly admitted either to the bar of this court or for this particular proceeding, See 11th Cir. R. 46-1; 46-3; 46-4. In addition, all attorneys (except court-appointed attorneys) who wish to participate in this appeal must file an appearance form within fourteen (14) days after this letter's date. The [Application for](#)

[Admission to the Bar](#) and [Appearance of Counsel Form](#) are available on the Court's website. **The clerk generally may not process filings from an attorney until that attorney files an appearance form.** See 11th Cir. R. 46-6(b).

Obligation to Notify Court of Change of Addresses

Each pro se party and attorney has a continuing obligation to notify this Court of any changes to the party's or attorney's addresses during the pendency of the case. See 11th Cir. R. 25-7.

Clerk's Office Phone Numbers

General Information:	404-335-6100	Attorney Admissions:	404-335-6122
Case Administration:	404-335-6135	Capital Cases:	404-335-6200
CM/ECF Help Desk:	404-335-6125	Cases Set for Oral Argument:	404-335-6141

Enclosure(s)

DKT-8 Agency